

Court No. - 4

Case :- WRIT - C No. - 6850 of 2020

Petitioner :- M/S Shivam Cold Storage

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Ashok Kumar Pandey

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Bala Krishna Narayana,J.

Hon'ble Ravi Nath Tilhari,J.

Supplementary affidavit filed in court today is taken on record.

As prayed by learned counsel for the petitioner, put up tomorrow i.e. 06.03.2020.

Order Date :- 5.3.2020

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(Ravi Nath Tilhari, J.) (Bala Krishna Narayana, J.)

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This writ petition has been filed, inter alia, for the following reliefs:

"a. To issue a writ, order or direction in the nature of certiorari calling for the records of the case and quashing the impugned recovery notice dated 21.1.2020 issued by the respondent no.2 against the petitioner5 (Annexure-1 to the writ petition).

b. To issue a writ, order or direction in the nature of mandamus commanding the respondents not to give effect to the order dated 17.1.2020 as well as recovery notice dated 21.1.2020 passed by the respondent no.2.

c. To, issue any suitable writ, order or direction which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case filed by the petitioner before this Hon'ble Court.

d. To award the cost of this writ petition to the petitioner."

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondents and perused the record.

At the very outset, learned counsel for the respondents submitted that against the impugned order the petitioner has an alternative remedy to file a complaint before the Consumer Grievance Redressal Forum as provided under Clause 7.10 of the U.P. Electricity Supply Code, 2005 for redressal of his grievance. But, instead of availing the said remedy the petitioner has chosen to file the present writ petition, which is not maintainable.

Learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the respondents.

In view of the above, we are not inclined to entertain this writ petition for the reasons that there is availability of statutory

remedy. However, in case, the petitioner approaches the Consumer Grievance Redressal Forum for redressal of his grievance within two weeks from today by filing a complaint under clause 7.10 of U.P Electricity Supply, Code 2005, the said complaint shall be considered and decided by the said forum in accordance with law preferably within four weeks from the date of receipt of a certified copy of this order by a reasoned and speaking order after giving opportunity of hearing to the petitioner.

For a period of six weeks or till the matter is decided by the Forum concerned, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery notice.

It is made clear that in case the petitioner fails to approach the Forum concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

We make it clear that we have not entered into the merits of the case and the same shall be decided by the authority concerned on its own merits.

With the aforesaid observation, the writ petition is finally **disposed of.**

Order Date :- 6.3.2020

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